

SENATE No. 1684

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting the confiscation of lawfully owned firearms during a state of emergency.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/23/2025</i>

SENATE No. 1684

By Mr. Fattman, a petition (accompanied by bill, Senate, No. 1684) of Ryan C. Fattman and David F. DeCoste for legislation to prohibit the confiscation of lawfully owned firearms during a state of emergency. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1513 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting the confiscation of lawfully owned firearms during a state of emergency.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 140 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 129D the following section:-

3 Section 129E. (a) No government official or any person acting on behalf of the
4 commonwealth shall order the confiscation of, or otherwise cause the confiscation of, any
5 lawfully owned firearm, rifle, shotgun, machinegun or ammunition.

6 (b) No law enforcement officer, person acting as a law enforcement officer, or other
7 public official shall confiscate or attempt to confiscate or attempt to confiscate an lawfully
8 carried or lawfully owned firearm, rifle, shotgun, machinegun or ammunition.

9 (c) Whoever violates the provisions of this section shall be subject to a civil fine of not
10 less than \$500 and not more than \$5,000 for each firearm unlawfully confiscated or by
11 imprisonment in a state prison for not more than two and one-half years. Nothing in this section
12 shall prohibit the confiscation of a firearm, rifle, shotgun, machinegun or ammunition from any
13 person who: (i) has been placed under arrest; (ii) is the subject of a protection order issued under
14 chapter 209A; or (iii) has had their firearm identification card or license to carry revoked or
15 suspended.